

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306697	HUIZAR VS J. VELARDE, INC.	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Grant; court will sign the proposed order after hearing.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2202620	JOHNSON VS COLORADO SECURITY AGENCY	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT AND PAGA SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. Class definition--§ 1.5, 1.11 of the settlement agreement describes the class as “all Colorado Security Agency non-exempt workers who worked in California” between April 22, 2018, and July 29, 2021. Proposed order defines the class as all non-exempt employees who worked for defendant in California during the class period. Points and authorities describe the class as “all persons employed by the city who worked as a non-exempt security workers (sic) in California from May 2020 to the present” and the notice defines the class as all non-exempt hourly individuals that worked for defendants in California from May 2020 to November 2020.
2. Amount of service award--\$1,250 (settlement agreement) or \$1,500 (points and authorities).
3. Order asks for appointment of Michael Johnson as class representative—but it should be Jacob Brown.
4. Shouldn't the LWDA/aggrieved employee split be 75/25 because the notice was sent before June 19, 2024? Settlement agreement says 65/35. Notice appears to be correct (75/25).
5. Are we able to add the average recovery to class and PAGA employees?
6. Confirm that both counsel are unaware of other cases making similar class, collective or representative claims.
7. Was a bidding process used to select Apex and was it the low bidder? Motion occasionally refers to Phoenix, which seems to be a typo. No declaration from Apex.
8. Will there be installment payments or will the GSA be funded by one payment (cf. settlement § 4.3 with memorandum at 19:19).
9. Discrepancies between agreement (appears to divide wages and non-wages as 24/25%) and memorandum (25/75) and notice (20/80).
10. PAGA release not limited to named plaintiff and the State. Probably want to include reference to *Arias v. Superior Court* (2009) 46 Cal.App.4th 969 in the final approval order.
11. Confirm that a copy of the settlement was sent to the LWDA.